

From : info@ethichawks.co.za

To : <jason.whyte@deney.co.za>,<frances.barker@deney.co.za>

Cc : <olebogeng.motlhaping@deney.co.za>

Subject : RE: AFR1282 - Final Notice Regarding Amicable Resolution and Resumption of Statutory Processes / Case No. 2026-083299 & 2026-086906 [IMAN-CPT_MATTERS.FID2264505]

Date : 18 Jun 2026 21:34

Dear Mr. Whyte and Ms. Barker,

I acknowledge receipt of your correspondence regarding the proposed round table meeting and your offer to pay my transport.

I wish to respond as follows.

I Agreed to the Meeting in Good Faith

I agreed to the round table meeting as a reasonable party, despite your client's documented history of:

- Institutional malice;
- Procedural bad faith;
- Stalling and attrition tactics since 4 June 2026;
- Demanding my evidence while providing nothing in return.

I did so because I remain genuinely committed to a fair and equitable resolution.

Your Client's Conduct Has Eroded Trust

However, your client's conduct since 4 June 2026 has demonstrated that they are not approaching this process in good faith:

- They initiated settlement discussions without any follow-through.
- They repeatedly stated they were "taking instructions" without providing any substantive response.
- They failed to propose a meeting date or agenda.
- They demanded my evidence while offering nothing in return.
- They now offer to pay my transport while continuing to stall and obstruct.

This creates a dynamic where your client can present a facade of reasonableness in person while continuing to obstruct the process in the background.

Governance and Integrity Are Prerequisites for Negotiations

Given your client's documented conduct, I must insist that negotiations proceed through written correspondence.

Written correspondence is the only appropriate forum for negotiations where:

- One party has demonstrated repeated bad faith;
- One party has used procedural attrition as a tactic;
- One party has demanded evidence without reciprocity;
- One party has consistently failed to engage substantively.

Written correspondence ensures:

- A permanent, verifiable record of all communications;
- Accountability for all undertakings and commitments;
- Transparency and integrity in the negotiation process;
- Protection against vague promises that can later be denied.

I am not interested in meeting and reverting to written correspondence. Written correspondence is the only reasonable path forward.

My Position Remains Clear

My Calderbank offer remains open. My Agenda Input Document sets out a comprehensive settlement framework. My deadlines of 20 June 2026 remain firm.

If your client is genuinely committed to an amicable resolution, they will:

1. Engage substantively in writing;
2. Provide a clear position on my offer;
3. Provide a draft framework for discussion.

I remain willing to settle this matter amicably. But I will not participate in a process designed to create a facade of reasonableness while your client continues to obstruct.

A Final Observation

Given your own experience as an Acting Judge, you will appreciate that courts view procedural stalling, litigation attrition, and bad faith conduct with disfavour particularly when deployed against a self-represented, destitute litigant.

The matter has been escalated to the Judge Presidents and is scheduled for a hearing.

I trust that your client will take this opportunity seriously and engage substantively in writing.

My rights remain fully reserved.

Yours faithfully,

Sr Wilbur William Matthee
RN | BTech General Nursing | Psychiatry | Midwifery | and Community Health | PGDip Health Services Management (NQF 8)
Founder – EthicHawks Forensic Governance & Compliance Consultancy
info@ethichawks.co.za | 069 635 1435
Developer – Wilbur Method™ Forensic Framework | PalCare Clinical Governance Platform
CI (SA) Compliance Practitioner (Associate) – CISA Pledge to the Code of Ethical and Professional Conduct
Compliance Institute of Southern Africa (CISA) | Membership Designation: CPrac(SA) – Pending Final Certification Modules
<https://www.ethichawks.co.za> | Cape Town, South Africa

Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules

--- On Wed, 17 Jun 2026 10:05:24 +0200 jason.whyte@deney.co.za wrote ---

Dear Mr Matthee

Thank you for your email.

We have requested urgent feedback from our client.

Kind regards

Jason Whyte | Director

Deneys Cape Town, South Africa
9th floor, 117 on Strand, 117 Strand Street, Cape Town 8001, South Africa
Tel: +27 21 405 1208 | Mobile: +27 83 236 3059
jason.whyte@deney.co.za



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From: Wilbur Matthee <info@ethichawks.co.za>
Sent: 17 June 2026 9:34 am
To: Jason Whyte <jason.whyte@deney.co.za>
Subject: RE: AFR1282 - Final Notice Regarding Amicable Resolution and Resumption of Statutory Processes / Case No. 2026-083299 & 2026-086906 [IMAN-CPT_MATTERS.FID2264505]

Dear Mr. Whyte,

Thank you for your correspondence of 17 June 2026.

I acknowledge your client's proposal for a round table meeting and note that this represents a meaningful step toward direct engagement. I am, in principle, prepared to participate, subject to the following three preconditions:

A formal written agenda must be circulated to me prior to the proposed meeting date, identifying the specific issues to be tabled and confirming the decision-making authority of your client's representatives in attendance.

I reserve the right to attend accompanied by a support person or advisor of my choosing.

Any agreements, undertakings, or points of consensus reached during the meeting must be reduced to writing and signed by authorised representatives of all parties on the day of the meeting.

I confirm that my statutory submissions and procedural actions will remain on hold pending the convening of the round table meeting, provided the above preconditions are met and the meeting is convened no later than Friday, 27 June 2026.

Please confirm your client's acceptance of these preconditions and propose available dates by close of business on Friday, 20 June 2026.

My rights remain fully reserved.

Yours faithfully,

Wilbur William Matthee

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From: Frances Barker <Frances.Barker@deneys.co.za>

Sent: 15 June 2026 4:51 pm

To: Wilbur Matthee <info@ethichawks.co.za>

Cc: Olebogeng Motlhaping <Olebogeng.Motlhaping@deneys.co.za>; Jason Whyte <jason.whyte@deneys.co.za>

Subject: RE: AFR1282 - Final Notice Regarding Amicable Resolution and Resumption of Statutory Processes / Case No. 2026-083299 & 2026-086906 [IMAN-CPT_MATTERS.FID2264505]

Dear Mr Matthee

We confirm receipt of your email.

As previously advised by Jason Whyte in respect of the broader resolution of your disputes with AfroCentric Investment Corporation Limited, its subsidiaries and directors, we confirm that we are still in the process of taking instructions from our client and will revert to you on receipt of same. We further note that it is a public holiday tomorrow.

We appreciate that you are genuinely committed to pursuing an amicable resolution. We will respond in greater detail when we have instructions regarding any proposal or framework.

Kind regards

Frances Barker | Associate

Deneys Cape Town, South Africa

9th floor, 117 on Strand, 117 Strand Street, Cape Town 8001, South Africa

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frances.barker@deneys.co.za



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From: Wilbur Matthee <info@ethichawks.co.za>

Sent: 13 June 2026 11:54

To: Jason Whyte <jason.whyte@deneys.co.za>; Frances Barker <Frances.Barker@deneys.co.za>

Cc: Olebogeng Motlhaping <Olebogeng.Motlhaping@deneys.co.za>

Subject: AFR1282 - Final Notice Regarding Amicable Resolution and Resumption of Statutory Processes / Case No. 2026-083299 & 2026-086906

Importance: High

Dear Mr. Whyte and Ms. Barker,

I write to follow up on my correspondence transmitted on 11 June 2026. I remain acutely aware of the tone and structure of that transmission, and I maintain that same firm, objective stance in this notice. As the initial deadline has passed without receipt of a substantive engagement or framework, if there is honestly a mutual interest in avoiding a new front of litigation and finding an amicable solution please engage. I am providing this final notice to formalize my position on record.

While I remain fully amenable to the amicable, email-based resolution your firm initiated on 4 June, this overture cannot indefinitely suspend my statutory obligations and constitutional remedies. The systemic Governance, Risk, and Compliance (GRC) issues central to this dispute span multiple regulatory and statutory bodies. The resulting exposure associated with a multi-jurisdictional oversight inquiry is profound.

My willingness to hold off on these submissions is rooted in a professional preference to mitigate that fallout constructively, and it serves to ensure that your client the Board and executive leadership are fully apprised of the extreme risks regarding the fallout and inevitable reputational damage this submission will generate.

At this juncture, I am requesting complete transparency regarding your clients' intentions.

If you are genuinely committed to pursuing an amicable resolution, please provide a clear indication of your proposed timeline, along with a preliminary draft framework or a formal proposed agenda by close of business on Tuesday, 16 June 2026.

Conversely, if there is no genuine intent to resolve this matter amicably, I request that you explicitly inform me so that we can conclude this specific track of correspondence.

For the avoidance of doubt, please understand that once this evidentiary bundle is formally lodged with these statutory committees, the oversight process is irrevocable and the submission cannot be withdrawn.

I trust you understand that this timeline is final and is established out of strict procedural necessity.

My rights remain fully reserved.

Yours faithfully,

Sr Wilbur William Matthee

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